

| #   | Case Name                                  | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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|     |                                            | <p>against Andrella based on a theory of direct liability. The demurrer is OVERRULED on these grounds.</p> <p>However, absent from the FAC are any alleged facts Hollins undertook personally. Further, Hollins is not alleged to have any knowledge of this promise or any involvement in it. Accordingly, the demurrer is SUSTAINED with leave to amend to the extent Plaintiff seeks to assert a claim against Hollins for direct liability concerning the cause of action for promissory fraud.</p> <p><b><u>Motion to Strike</u></b></p> <p>Defendants Stacie Andrella and Kathleen Hollins' Motion to Strike Portions of the First Amended Complaint is GRANTED in part. (Code Civ. Proc. §436, subd. (a).) The Motion is GRANTED as to FAC ¶51 because Plaintiffs improperly allege an amount of punitive damages sought. Pursuant to Civ. Code §3295, subd. (e) "[n]o claim for exemplary damages shall state an amount or amounts." Accordingly, the language "in the amount of at least \$1,000,000.00." is hereby STRICKEN from FAC ¶51.</p> <p>The Motion is DENIED as to the prayer for punitive damages because Plaintiff has alleged a sufficient cause of action for fraud, which is sufficient to support a prayer for punitive damages.</p> <p>The motion is DENIED as to FAC ¶¶ 25-28. A demurrer, rather than a motion to strike, is the correct vehicle for challenging these allegations. And Defendants did demur to these paragraphs, which the Court overruled.</p> <p>The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28.</p> <p>Plaintiff shall provide notice of this ruling.</p> |
| 54. | <p>Jones v. Myers</p> <p>2026-01542899</p> | <p>Plaintiff Desiree Jones' "Motion to Set Aside Default and Vacate Judgment," seeking to set aside this court's 5-5-26 order on a special motion to strike by defendant Susanne Myre, erroneously sued as Susanne Myers, is DENIED.</p> <p>Moving party contends the special motion to strike was improperly served, and requests the 5-5-26 order thereon be vacated, citing Code Civ. Proc., §§ 473, subd. (d), and 473.5. Code Civ. Proc., § 473.5 is not applicable, as it authorizes relief from "default or default judgment and for leave to defend the action" where "service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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|   |           | <p>the party in the action.” (Code Civ. Proc., § 473.5, subd. (a).) The instant motion seeks relief from an order on a special motion to strike pursuant to Code Civ. Proc., § 425.16, not a default or default judgment resulting from insufficient notice after service of summons.</p> <p>Nor has moving plaintiff shown the 5-5-26 order is void. (Code Civ. Proc., §§ 473, subd. (d).) There is no requirement that defendant personally serve the special motion to strike, nor to serve file-stamped copies. (Ex. C to moving papers [requesting personal service of file-stamped copies of anti-SLAPP motion]; Code Civ. Proc., §§ 1005, subds. (a)(13), (b) [authorizing service by mail, express mail, or “another method of delivery providing for overnight delivery,” for “[a]ny other proceeding under this code in which notice is required, and no other time or method is prescribed by law or by court or judge”], 1010 [“Notices and other papers may be served upon the party or attorney in the manner prescribed in this chapter, when not otherwise provided by this code”].)</p> <p>Moving party also argues that she did not consent to electronic service of the special motion to strike, as required for unrepresented parties. (Cal. Rules of Court, Rule 2.251, subd. (c)(3)(B), and Rule 2.253, subds. (b)(2).) As noted in the 5-5-26 order, notwithstanding any service defects of the special motion to strike, plaintiff filed an opposition on the merits, did not argue that service was defective, and did not articulate any prejudice resulting from service issues; accordingly, the court found that plaintiff’s opposition on the merits to the special motion to strike thus waived any service issues as to the moving papers. (ROA 35 [5-5-26 minute order, citing, <i>inter alia</i>, <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect]; see also <i>Reedy v. Bussell</i> (2007) 148 Cal.App.4th 1272, 1288 [written opposition to motions that “never so much as suggested notice was defective” waived service/notice defects].) The instant motion fails to address this portion of the court’s 5-5-26 order finding waiver of service / notice defects as to the moving papers on the special motion to strike, due to plaintiff’s opposition on the merits.</p> <p>To the extent the instant motion presents additional evidence regarding the merits of plaintiff’s claims (Ex. E), it appears plaintiff may also be seeking reconsideration of the 5-5-26 order. (Code Civ. Proc., § 1008 [motions for reconsideration]; see also <i>Sole Energy Co. v. Petrominerals Corp.</i> (2005) 128 Cal.App.4th 187, 193 [court’s discretion to consider motion based on the relief sought].) However, plaintiff fails to</p> |

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|     |                                   | <p>"provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (<i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 212; see also <i>Garcia v. Hejmadi</i> (1997) 58 Cal.App.4th 674, 690 ["strict requirement of diligence" for reconsideration motions].)</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 55. | Baca v. Baca<br><br>2026-01546605 | <p>Defendant Carey M. Baca's motion to stay or dismiss this action for inconvenient forum pursuant to C.C.P. § 418.10(a)(2) and § 410.30 is DENIED. The alternative request under C.C.P. § 430.10(c) is GRANTED in part.</p> <p>Defendant's request under C.C.P. § 418.10 is DENIED as defendant fails to explain how proceeding with this action in this court would be an unjust or unfair. The burden of proof is on defendant as the moving party. <i>Stangvik v. Shiley Inc.</i> (1991) 54 Cal. 3d 744, 751. The court assumes, without deciding, that Nevada could be a suitable forum. Defendant must also show that the private interests of the litigants and the public interests also favor defendant. Defendant fails to make this showing. First, "plaintiff's choice of a forum should rarely be disturbed unless the balance is strongly in favor of the defendant." <i>Id.</i> at 754. "[P]laintiff's choice of forum is presumed to be convenient and [] a state has a strong interest in assuring its own residents an adequate forum for the redress of grievances." <i>Id.</i> at 754-755.</p> <p>Defendant has not presented evidence addressing these criteria, other than (1) defendant's residence is Nevada; and (2) there is another action currently pending in Nevada that involves some but not all of the claims asserted in the current action. Defendant's motion pursuant to C.C.P. § 418.10 is therefore denied. And based on the same rationale, the motion pursuant to § 410.30 is also DENIED.</p> <p>However, the court GRANTS defendant's motion pursuant to C.C.P. § 430.10(c) and STAYS this litigation.</p> <p>The Nevada action and the current action involve the same premise: allegations that defendant created a fraudulent or unenforceable power of attorney in June 2023. (Compl. at ¶ 17; Exh. E ¶ 20). Both the Nevada action and the current action require two different courts to determine the validity of the June 2023 power of attorney, and seek remedies that would flow therefrom.</p> <p>The Nevada action (filed in February 2024) and the current action (filed in February 2026) involve exclusive concurrent jurisdiction analysis. "The established rule of exclusive concurrent jurisdiction provides that where two or more courts</p> |